

**SYNTHETIC COUNTERFACTUAL APPELLATE BRANCH — NEVER
OCCURRED ON THE ACTUAL DOCKET — ALL FACTS AND
IDENTIFIERS ARE FICTIONAL**

Branch source B09: adverse ordinary-mandate route marker B09.

United States Court of Appeals for the Fourth Circuit

Mara Ellison v. Officer Nolan Rusk

No. SYN-CA4-26-CV-4104-CF-NEVER-OCCURRED

Ordinary Mandate

Issued July 21, 2026

The United States Court of Appeals for the Fourth Circuit remands this cause to the United States District Court for the Western District of Virginia in accordance with the opinion and judgment entered June 30, 2026. The appeal is dismissed to the extent Officer Nolan Rusk sought review of the district court's evidence-sufficiency determination. The legal denial of qualified immunity is reversed, and the district court is instructed to enter summary judgment for Rusk on Mara Ellison's remaining damages claim.

No rehearing petition was filed during the applicable fourteen-day period. Seven additional calendar days have elapsed, and the mandate therefore issues on the ordinary schedule prescribed by Federal Rule of Appellate Procedure 41(b). No stay of mandate is pending or effective in this counterfactual route.

The opinion's assumed facts are not adjudicated historical facts. The appellate court did not decide whether Ellison struck Rusk, approached his duty belt, or instead only recoiled and pulled. It granted immunity because the law on February 3, 2025 did not clearly establish the specific assumed violation beyond debate. That distinction binds further proceedings.

Allowable appellate costs are awarded to Rusk, subject to taxation under governing procedures.

Authentication and Effect

This mandate consists of the certified judgment, the published opinion, and the stated direction concerning costs. It becomes effective upon issuance on July 21, 2026. The district court need not wait for physical delivery of an additional writ and may docket the transmission when received.

The remand permits only steps consistent with the appellate disposition. It does not create findings about the camera footage, approve force as a matter of policy, or adjudicate claims against the City of Alder Creek or Chief Samuel Orton that were no longer pending. It terminates the sole surviving individual-capacity action through qualified immunity.

Any later petition for certiorari proceeds under the rules governing Supreme Court review and does not alter this mandate without a valid recall or stay. The circuit clerk has received no order requiring either action. The record of issuance shall remain associated solely with docket SYN-CA4-26-CV-4104-CF-NEVER-OCCURRED.

The district clerk should preserve the certified record and native media according to existing requirements while entering the directed judgment. Ordinary matters concerning taxable costs and case closure remain within the district court's administrative authority. Nothing further is reserved to this panel on the present route.

Issued under the Court's seal and authenticated by the Clerk at the direction of Chief Judge Alder and Judges Reed and March.